

UNDERSTANDING THE ESSENTIAL PRINCIPLES OF LANDLORD AND TENANT LAWS IN NIGERIA THROUGH JUDICIAL DECISIONS

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ABSTRACT:

Tenancy relationships in Nigeria are largely regulated by statutes. Most of the provisions of these statutes to lawyers and other stakeholders are susceptible to inconsistent interpretations. In recent times, the courts in Nigeria have taken steps to look beyond the law books and give flesh to areas in tenancy matters where there seem to be inadequacies in the provisions of the laws. In doing this, the courts have come up with some legal principles that the relevant statutes do not explicitly provide for, but arguably flow from the provisions of such statutes— a good example being the principle that a tenant who contests ownership with the landlord loses right to statutory notice to quit. Terms such as 'landlord' and 'tenant' are not as simple as they appear, especially considering the statutory definitions given to them by some of the tenancy statutes in Nigeria— particular attention is given in this regard to Tenancy Law of Lagos State 2011. This paper considers the intricacies of the definition of and relationship between the landlord and the tenant as provided in statutes and as interpreted by overtime by courts in Nigeria. The paper analyses the nature of the relationship between the landlord and the tenant as may be conceived and disambiguates the scope of law of a landlord and tenant relationship in Nigeria.

Key words: Tenancy Law, Landlord, Tenant, Nigeria, Landlord and Tenant Relationship

INTRODUCTION:

In all social, economic and commercial relationships that exist between two or more persons in every society, the relationship between the landlord and the tenant forms one of those relationships that take the centre stage and culminate into an essential part of the society at large. In Nigeria, the larger stratum of tenancy relationships comes within the private divide. Apart from few instances where the government at all levels makes provisions for housing schemes, private investors in real property have always dominated and controlled tenancy relationships through private contracts and tenancy agreements entered into between the landlord and the tenant based on the terms agreed by the parties.

Having in view the possibility of unequal bargaining powers that may exist in a tenancy relationship, especially to the detriment of the tenant, the urgent need to regulate tenancy relationships privately entered into between landlords and tenants became inevitable, and the ultimate result of this is the enactment of the respective rent control and recovery of premises laws in the various States in Nigeria. The objective of these laws is mainly to regulate rights and obligations under tenancy agreements and relationship between the tenant and the landlord, including the procedure for the recovery of premises.¹

Most of the provisions of these laws to lawyers and other stakeholders, as they would seem in many instances, are like the proverbial encounter of the six blind men with an elephant. They are susceptible to inconsistent interpretations. While this fact may be said to be a product of legislative inelegance, it suffices to say that until any legislative revisit of a law by way of an amendment or repeal is carried out, the court becomes vested with the power to give flesh to the provisions of the law through judicial interpretation. In doing this, the court at times somewhat transcends the written letters of the law with the view to curing any mischief that may arise from a mechanical interpretation of the law.

LANDLORD AND TENANT DEFINED:

A landlord has been defined as the person entitled to the immediate reversion of the premises or if the premises are held in joint tenancy or tenancy in common, any of the persons entitled to the immediate reversion, which will include the attorney, solicitor, agent or caretaker, receiving rent from any person for the occupation of the premises in respect of which such attorney, agent or caretaker claims a right to receive the rent.² In another parlance, a landlord is not only the 'owner' of the premises who enters into a

¹ See generally the preambles to the Tenancy Law of Lagos State 2011, Law No.14 of 2011; Rent Control and Recovery of Premises Law of Cross River State, Cap R3, 2004; *Rent Control and Recovery of Residential Premises Law of Delta State* Cap R5, Laws of Delta State; *Recovery of Premises Act*, Abuja, LFN 1990 and other rent and recovery of premises laws of other Nigerian States which have similar provisions.

² Section 47 of Tenancy Law of Lagos State 2011; section 55 Rent Recovery and Recovery of Premises Law of Cross Rivers State, Laws of Cross Rivers State 2004

tenancy agreement with a tenant. In relation to any premises, a landlord also includes the below listed persons:

- a. Any other person(s), other than the original landlord who has acquired the reversionary interest of the original landlord. This may be a bona fide purchaser of the reversion for value, a person to whom the original landlord has taken a loan from and used his reversionary interest as security or a person who has been given the reversion as a gift by the original landlord;
- b. Any other person(s), other than the original landlord, who has succeeded the original landlord and inherited his/her estate under the law of succession;
- c. Attorney, solicitor, agent or caretaker who has been empowered or given power of attorney by the original landlord to collect rents;
- d. Attorney, solicitor, agent or caretaker whose agency with the landlord is coupled with an interest in the rents; and
- e. Any other person(s), other than the original landlord who is a joint or common owner and who is equally entitled to the immediate reversion of the premises just like the original landlord.³

One major problem that can be easily detected from this all-encompassing statutory definition of a landlord is that there is the possibility that different persons, adjudged to be landlords, may be having adverse claims on and interests in the immediate reversion at the same time. The definitions of a landlord in the respective recovery of premises laws in the Nigerian States are almost on all fours in this respect. Interpreting section 40 of the **Rent Control and recovery of Premises Edict No 9 of 1976** of Lagos State, the Court of Appeal in the case of *COKER V. ADETAYO & ORS*⁴, reiterated the components of this definition.⁵

A tenant, on the other hand, has been defined as including a sub-tenant or any person occupying any premises whether by payment of rent howsoever or by operation of law, and not persons unlawfully occupying any premises under a bona fide claim to be the owner.⁶ The approach adopted by this definition is an *inclusive-exclusive* approach. This is a definitional approach that portrays not directly what something

³ This applies to a situation where there are two or more landlords having ownership interests in the premises. For example, beneficial owners of a family property are joint or common owners of the property. As such, where the property is let to a tenant, they become common landlords to that tenant.

⁴ (1992) LPELP-15369.

⁵ Ibid. at page 23

⁶ See generally section 47 of Tenancy Law of Lagos State 2011 and section 55 of Rent and Recovery of Premises Law of Cross Rivers State, Laws of Cross Rivers State 2004;

is, but what something should ordinarily be (inclusive) and not be (exclusive). By this definition, a tenant may be said to be any of the following persons:

- a. A person that lawfully enters into the premises and occupies same by virtue of a tenancy agreement directly entered into between him and the landlord whether by payment of rent or otherwise;
- b. A person(s), other than the original tenant that entered into a tenancy agreement with the landlord, who has succeeded the original tenant and inherited his/her estate under the law of succession⁷;
- c. A sub-tenant to whom the original tenant has sublet or assigned all or part of his/her interests in the demised premises; and
- d. A person occupying the demised premises by operation of law.⁸

Aside the analysis of the definition of a tenant above, the courts have, over the years in an attempt to bring the provisions of this part of the rent and recovery of premises laws alive, consistently held that what qualifies a person as a tenant is "lawful occupation." In the case of *ABEKE V. ODUNSI*⁹, the Supreme Court, relying on its old case of *Oduye v. Nigeria Airways Limited* decided in 1987, held as follows:

*"Who then is a tenant? Under the Rent Control and Recovery of Residential Premises Law - Section 40(i) provides thus:- "Unless the content otherwise requires "tenant" includes a sub-tenant or any person occupying any premises whether on payment of rent or otherwise but does not include a person occupying Premises under a bonafide claim to be the owner of the premises." The qualification, therefore, for becoming a tenant under the Law is lawful occupation. See; Ibiyemi Oduye Vs Nigeria Airways Ltd (1987) NWLR (Pt.55) 126; (1987) 4 SC 202; (1987) All NLR 398, (1987) LPELR - SC.135."*¹⁰

⁷ Tenancy creates an estate that is inheritable by the beneficiaries of a deceased tenant under the law of succession. The exception to this will appear to be a statutory tenancy, as it does not create any estate in favour of the statutory tenant. It only creates a privilege that is personal to the statutory tenant alone, same which cannot be transferred to a successor. See *ADEPONLE V. SAID* (1956) NSCC 71

⁸ The phrase "by operation of law" is particular only to the Tenancy Law of Lagos State 2011. This is a new introduction that is novel to other Rent Control and Recovery of Premises Laws of the respective States in Nigeria, including the Rent Control and Recovery of Remises Law of Lagos State 1997. This writer submits that this phrase may cover the following situations: (a.) statutory tenancy that results after the expiration of the contractual tenancy by operation of law; (b.) succession of contractual tenancy after the demise of the original tenant; (a situation where the tenant uses his tenancy as a security for a loan which he has defaulted in refunding and the creditor has attached the tenancy.

⁹ (2013)ALL NWLR (PART 697) 1797

¹⁰ Per Ariwoola, JSC, (Pp 25-26), paras G-C.

Cases decided between 1987 (after the Oduye's case) and 2018 have consistently held that what qualifies a person as tenant is lawful occupation. This decision underscores and reaffirms the fact that by Supreme Court interpretation of the provisions of the various rent control and recovery of premises laws in Nigeria on the meaning of a tenant, lawful occupation is the pass mark for being a tenant. To my mind, lawful occupation is best described as any occupation that is not unlawful, which by implication may include an occupation by a licensee, except where a law¹¹ or parties by agreement provide or agree otherwise.¹²

THE SCOPE OF LAW OF LANDLORD AND TENANT:

Historically, the relationship between the landlord and the tenant was founded purely on contract or law of obligations alone.¹³ The relationship was regarded as one of contract that gave rise to personal rights alone, and not rights to property—which in essence meant that only the parties to the agreement and not third parties could benefit from it.¹⁴ It was by the end of the fifteenth century that the law considered the relationship between the landlord and the tenant as conferring on the tenant a right in property binding on other people.¹⁵ Other people as used here will include the family members of the tenant who are occupying the premises by virtue of the tenant's tenancy with the landlord; subtenants brought into the premises by the tenant and any other persons to whom the tenant might have alienated his/her interests to as some form of security.¹⁶

The nature of the relationship between the landlord and the tenant has been described as follows:¹⁷

- a. One of tenure, from which follows that the respective assignees of the original parties will be bound by the terms of the tenancy, and the tenant is estopped from denying his landlord's title;
- b. One that creates in the tenant an estate which must be less than the landlord's, which follows that for the duration of that estate, there must be two concurrent estates in the land or property (i.e the tenancy and the reversion);

¹¹ Most of the rent and recovery of premises laws in Nigeria do not make a distinction between a tenant and a licensee such as a service occupant. The implication of this is that licensees such as service occupants, for being in lawful occupation, may be adjudged to be tenants, especially where there is no provision of law or agreement otherwise. This is a mischief sought to be cured by the Lagos State Tenancy Law 2011 which expressly makes a distinction between tenants and licensees and provides for the respective lengths of notice for termination of both. See sections 6-13 for tenants and section 14 for licensees. See also the respective definitions of both concepts under section 47.

¹² Another implication of using "lawful occupation" as a yardstick for determining whom a tenant is, is that apart from trespassers and squatters (who are occupying premises unlawfully) and bona fide claimant of title to the premises as such as the owner, other persons will qualify as tenants.

¹³ J.M. Male, *Landlord and Tenant*, 4th ed., Pearson Professional Limited (1995) p.1

¹⁴ *Ibid*.

¹⁵ *Ibid*.

¹⁶ Since tenancy creates an estate in favour of the tenant, such estate may be used as a security for an obligation owed by the tenant to a third party, where the tenancy agreement between the landlord and the tenant allows such.

¹⁷ See generally D.L, Evans, *The Law of Landlord and Tenant*, Butterworths Publications(1974) pp 12-13

- c. One that enables the tenant to assign or mortgage his/her tenancy or create sub-tenancies(provided reversion is reserved), except otherwise restricted;
- d. One that arises between the parties by (i) agreement (expressly or impliedly as in periodic tenancy); (ii) statute or operation of law (statutory tenancy and successive tenancy); and (iii) estoppel;
- e. One that arises between persons who were not parties to the original tenancy, but later become parties by the act of the original parties through assignment of reversion of the landlord and the estate of the tenant.

With the above background at the back of one's mind, the scope of the law of landlord and tenant in Nigeria can be better understood as being a conglomerate of law of contract, law of real property, law of succession and law of commercial transactions.

As an aspect of law of contract, there must be present in the transaction all the essential ingredients¹⁸ of a contract before the tenancy between the landlord and the tenant can be valid in law. All the principles of law of contract such as the vitiating elements, contractual reliefs and award of damages for breach will also apply in a tenancy relationship being a form of contract. Affirming a tenancy agreement as a contract between the landlord and the tenant whose terms must be obeyed by the parties (the breach of which will entitle a Plaintiff to damages), the Court of Appeal held in *AMAKEZE V. ONWUDIWE*¹⁹ that *"It is in the public interest that the sanctity of tenancy agreements like all contracts be protected and the rule of law upheld at all time."*

As an aspect of law of real property, a tenancy creates an estate and alienates an interest in real property which is possessory in nature, and must be less than the estate of the landlord in that same property. Be that as it may, the principles regulating law of real property and dealings in real property in Nigeria become applicable to a tenancy relationship as regard form and essence. For example, an equitable and legal interest in real property can be created by way of a tenancy or leasehold relationship, and non-perfection of a document or completion of an action seeking to create same will not take away the interest. A scenario as this can be drawn from the decision of the Court of Appeal in the case of *OGUNSANYA V. SKYE BANK PLC*²⁰, where the court held as follows:

"I agree with the lower Court when it said at page 6 of the Judgment - page 177 of the Record of Appeal- "It was agreed fact that Eko International Bank paid

¹⁸ The four essentials of a valid contract are offer, acceptance, consideration and intention to create legal relation

¹⁹ (2013)LPELP-20350 (CA), Per Agim, JCA (Paras E-F) P.43.

²⁰(2013) LPELR-20555(CA), Per PEMU, J.C.A. (P. 34, paras. A-G)

rents for ten years to the Claimants and it went into possession of the land in dispute and erected a building thereon and maintained possession of the property. The law is that where the holder of an unregistered registrable instrument has paid the purchase price or the rents as the case may be and he is in possession of the property, he is deemed to possess an equitable interest in the property in the terms of his agreement and this is as good as a legal estate - OKOYE V. DUMEZ (NIG) LTD 1985 1 NWLR Pt 4) 783; KACHALLA v. BANKI (2006) 8 NWLR (pt 982) 364; NSIEGBE v. MGBEMENA (2007) 10 NWLR (pt 1042) 364. BUCKNOR MACLEAN V. INLAKS (1980) 8-11 SC 1."

The law of succession is a close neighbour of law of real property. Its rules and principles will also apply to tenancy matters so long as a tenancy creates an estate in real property which is inheritable by the personal representatives of a deceased tenant under the administration of estate laws of the respective States in Nigeria. In Lagos State for example, section 3(1) of the Administration of Estate Law of Lagos State provides thus:

"Real Estate to which a deceased person was entitled for an interest not ceasing on his death shall on his death and notwithstanding any testamentary disposition thereof, devolve from time to time on the personal representative of the deceased, in like manner as before the commencement of this law chattels real devolved on the personal representative from time to time of a deceased person"

As said earlier, the estate (possessory interest) created by virtue of a tenant's unexpired tenancy is inheritable, as the estate is not ceasing upon his/her death. The only circumstance where the personal representatives²¹ of a deceased's tenant will not be capable of inheriting his/her tenancy is when the interest in the tenancy has extinguished by effluxion of time or expiration of a quit notice, in which case the deceased tenant would have become a statutory tenant. The Supreme Court has since settled this position in *ADEPONLE V. SAIDI*²². In that case, an action was commenced against an administrator of the estate of the deceased tenant who took possession of the landlord's premises after the death of the deceased tenant. As at the time the tenant died, his tenancy had not expired. The contention of the deceased tenant's administrator was that the tenancy of the deceased was never determined before his death. The court held as follows:

*"The sole question in this appeal is whether his tenancy was duly determined by notice to quit before his death. If it was, then until his death he was a tenant holding over under the Rent Restriction Ordinance; that is to say, he was **what is commonly called a statutory tenant with a personal right of occupation***

²¹ Personal representatives of the deceased tenant are the heirs. See section 3(2)&(3) of the Administration of Estate Law of Lagos State

²²(1956) NSCC 71

terminating with his death. If it was not, then Alalade's contractual tenancy vested in his administrators...²³

On a final note, the law of commercial transactions has also, in modern times, wriggled its way into the scope of the law of landlord and tenant. Commercial transactions, in law, represent the core of the legal rules governing business dealings.²⁴ The business dealings include sale of goods, banking and other transactions involving buying, selling and offering of services. Subleasing, charging and mortgaging of a tenancy are commercial transactions that a tenant can enter into with a sub-tenant, a bank or any other creditor.²⁵

TYPES OF TENANCY

Generally, tenancy in Nigeria is divided into two types—that is, contractual tenancy and statutory tenancy. This classification was recognized by the Supreme Court, when it stated that there are two types of tenancies recognized under the recovery of premises laws: contractual tenancy and statutory tenancy.²⁶ Contractual tenancy may further be classified into periodic tenancy and fixed tenancy. Periodic tenancy has been further divided by the respective recovery of premises laws in Nigeria into weekly tenancy, monthly tenancy, quarterly tenancy, half-yearly tenancy,²⁷ yearly tenancy and other form(s) of periodic tenancy that may be recognized by law or created by the landlord and the tenant—such as tenancy at will.²⁸ Each of the types and sub-divisions will now be looked at in details, and with the aids of decided cases:

I. Contractual Tenancy—

In *FARAJOYE V. HASSAN*²⁹, the court defined a contractual tenancy as “*the usual or common one that involves agreement between the landlord and the tenant, written or oral on the terms and conditions of the tenancy.*” A contractual tenancy is a conscious effort of the landlord and the tenant which must involve all the elements of a valid contract such as offer, acceptance, consideration and intention to create a legal relation. It is purely a contract between the landlord and tenancy. It is a contract of tenancy which, if written, usually contains the terms and conditions of the tenancy, together with the rights and obligations of both the landlord and the tenant.

²³Ibid at p.73

²⁴ Encyclopedia Britannica: <http://www.britannica.com/EBchecked/topic/127986/commercial-transaction/21721/Elements-of-the-law-of-commercial-transactions>. Last accessed 22nd December, 2019

²⁵ Ordinarily, a tenant cannot transfer or charge his tenancy without the consent of the landlord which must be first sought and had.

²⁶*African Petroleum Limited v. Owodunni* (1991) 8 NWLR (Pt.210)391; (2004) All FWLR(Pt.208)771, Per Karibi-Whyte. See also *Farajoye v. Hassan* (2006)16 NWLR (Pt. 1006) P. 463-468.

²⁷ S.13, Tenancy Law of Lagos State 2011 statutorily recognizes half-yearly tenancy for the first time.

²⁸ Tenancy at will is a form of contractual tenancy, but it does not fall under any of the classifications into periodic and fixed tenancies. It will appear to be *sui generis* because it is neither of fixed tenure like fixed tenancy or of successive certain tenures as periodic tenancy.

²⁹ (2006)16 NWLR (Pt. 1006) 487

A contract tenancy may also be orally made. Where this is the case and the terms and conditions of the tenancy are not orally spelt out, the law or the court will not presume that parties agree on covenants that are ordinarily expected to be expressly stated in a tenancy agreement if so desired by the landlord and the tenant. The rule of '*lex non cogit ad impossibilia*' and the rule that the court of law will not make a contract for the parties will come to play.³⁰ However, covenants that are implied by law, if not expressly agreed on by the parties, will at all times be interpreted to be part of the oral tenancy agreement. Such covenants include, on the side of the tenant, payment of rent, obligation not to commit waste, payment of rates and tenant-like use of the demise premises; and on the side of the landlord, allowing tenant quiet enjoyment and not to derogate from his grant.

A tenancy contract cannot derogate from terms, conditions and/or covenants implied or recognized by a statute as forming part of any tenancy agreement, whether or not such terms are contained in the written or oral agreement between the tenant and the landlord.

II. Statutory Tenancy—

This is a tenancy that is brought about by the operation of law, as distinct from one brought about by the conscious effort or the consensus *ad idem* of the landlord and the tenant. It is a tenancy that the law presumes to result by operation of law after the original contractual tenancy has expired as in the case of a fixed tenancy or has been determined as in the case of a periodic tenancy, but the tenant holds over or fails to give up possession of the demised premises. Statutory tenancy, as a type of tenancy or concept, is not directly provided for or recognized in any of the rent control and recovery of premises laws of the respective States in Nigeria.³¹

The concept of statutory tenancy in Nigeria is a judicial coinage rather than an unequivocal legislative recognition.³² It is a creation of the court which is drawn majorly from the incidents of the obligations imposed on the landlord by the rent control and recovery of premises laws of the respective States in Nigeria in the event that the landlord seeks to recover premises from the tenant after the determination or expiration of the contractual tenancy.

³⁰ See *Tominas Nigeria Limited v. Chigbu* (2006) LPELR-11924(CA).

³¹ See for example *Tenancy Law of Lagos State 2011*; *Rent Control and Recovery of Premises Law of Cross River States* Cap R3, Laws of Cross Rivers State 2004; *Rent Control and Recovery of Residential Premises Law of Delta State* Cap R5, Laws of Delta State; *Recovery of Premises Act, Abuja*, LFN 1990 and other rent control and recovery of premises laws of other Nigerian States which have similar provisions. None of these laws specifically recognizes a statutory tenancy as a type. This situation can be compared to that of the United Kingdom and Ghana whose respective tenancy laws specifically recognize statutory tenancy as a type of tenancy. See the Ghanaian **Rent Act of 1963** (Act 220) and the U.K's **Rent Act of 1977** as amended by the Housing Act of 2004.

³² See *African Petroleum Limited V. Owodunni*, n. 26; *Pan Asian African Co. Limited v. National Insurance Corporation Limited* (1982) 9 SC 1; *Sule v. Nigerian Cotton Board* (1985) 2NWLR (Pt5) 17; *Oduye v. Nigerian Airways Limited* (1987) 2 NWLR (Pt. 55) 126; *Adeponle v. Saidi* (1956) NSCC 71

By its nature, a statutory tenancy in Nigeria has the following features³³:

- a. *It is a tenancy that results by operation of law after the expiration of an earlier contractual tenancy between the landlord and the tenant.*
- b. *It is deemed to have been recognized by a statute as distinct from an oral or express contractual tenancy agreement entered into between the landlord and the tenant.*
- c. *It is usually an incident of obligations vested by a statute on the landlord towards recovery of the premises being occupied by the tenant.*
- d. *It allows the tenant to hold over the possession of the premises without the consent or willingness of the landlord until appropriate legal actions have been taken against him or possession is voluntarily yielded up by him.*
- e. *It allows the tenant to be entitled to and claim all the benefits in the enabling statute and the original contract between him and the landlord.*
- f. *It confers no estate to the tenant but gives him right of possession equal to that of a tenant with estate.*³⁴
- g. *It creates a tenancy only within the ambit of the enabling statute.*
- h. *Termination can only be in accordance with the manner and length of term of the original grant between the landlord and the tenant.*
- i. *It creates an anomalous legal entity who will not ordinarily be described as a tenant.*
- j. *It creates a tenancy where the tenant cannot be regarded as a trespasser until and until he is properly served the statutory notice(s) and same has expired.*

III. Fixed Tenancy—

³³ Ibid.

³⁴ The right of possession is personal only to the statutory tenant. It extinguishes with the death of the tenant and does not pass or transfer to his successor whether or not the statutory tenancy has been determined. See *Adeponle V. Saidi*, n.32.

A tenancy is said to be fixed when there is certainty as to the commencement and the expiration of the tenancy. It is for a fixed duration, which means that upon the expiration of the duration, the tenancy determines naturally. A fixed tenancy does not enjoy presumption of automatic renewal like a periodic tenancy. It is a tenancy for a term certain, and the certainty of the term is known to and agreed on by both parties right from the beginning.

A fixed tenancy is a form of a contractual tenancy. It can be for one week, six months, one year, two years, three years or more—in which case it may have the semblance of a lease and require the formalities of a long lease. What is essential is that once a tenancy is for a term certain, it is always construed as a fixed tenancy even if the term is for one week like a weekly tenancy, six months like a half-yearly tenancy or one year like a yearly tenancy.³⁵

In *JOSEPH V. ADOLE*³⁶, the Court of Appeal construed a fixed tenancy as follows:

"The position of the law is that a lease or tenancy for a fixed term automatically determines when the fixed term expires. Quit notice is usually obviated in the case of a fixed tenancy since the term of expiration is normally known unlike periodic tenancies that continues automatically from period to period until it determines by a notice to quit. See Nweke v. Ibe (1974) 4 ECSLR page 54."

A fixed tenancy, after its effluxion, can be converted to a *periodic tenancy* where the tenant enters into a new periodic tenancy agreement with the landlord; or to a *statutory tenancy* where the tenant holds over without the consent of the landlord; or to a *tenancy at will* where the tenant holds over with the consent of the landlord on the condition that either of the parties may terminate the tenancy at their pleasure.

IV. Periodic Tenancy—

A periodic tenancy is one that begins and ends at a particular period, but which renews itself automatically at the end of that particular period for another successive period of equal length. Unlike a fixed tenancy, a periodic tenancy enjoys automatic renewal at the end of one period—the renewal of which is presumed to be on the same terms and conditions as the expired period. It is not for a term certain, as the very end of it cannot be ascertained by the landlord and the tenant as at the time of entering into the contract.

³⁵ A distinction must be made between, say, a yearly tenancy and a fixed tenancy for one year. While the former renews automatically after the expiration of the year and continues to run until it is determined by a valid quit notice as provided by the relevant rent and recovery of premises law, the latter does not renew after the expiration of the year. It determines automatically, without the requirement for service of a quit notice. While in the former the tenant will be entitled to a quit notice and a 7-day notice of intention to recover premises in the event that the landlord seeks recovery of the demised premises, in the latter what is required is just a 7-day notice intention to recover premises. In a nutshell, a yearly tenancy renews itself automatically, but a fixed tenancy for one year determines itself automatically. See section 13 Tenancy Law of Lagos State; *Joseph v. Adole* (2010) LPELP-CA/A/198/2007.

³⁶ (2010)LPELP-CA/A/198/2007, *Per Aboki, J.C.A. (P.16, Paras.B-C).*

A periodic tenancy is also a form of a contractual tenancy. It can also be for one week, six months, one year or more, depending on the relevant law and the agreement between the parties.³⁷

V. Tenancy at Will—

Tenancy at will arises where a tenant, after the expiration or effluxion of his tenancy, holds over with the consent of the landlord, but on the condition that either the landlord or the tenant may terminate the tenancy at their pleasure. It is devoid of certainty of term when the tenancy will be determined. Tenancy at will is also a form of contractual tenancy because it involves a decision reached *ad idem* by the landlord and the tenant.

Construing the nature of a tenancy at will, the Court of Appeal in a very recent case of *OYEGBESAN V. OYEGBESAN* held as follows:³⁸

“A tenancy at will has built into the mutual understanding that both the tenant and the landlord can terminate the tenancy when any of them likes or at any time convenient to any of them.”

Two major features differentiate a *tenancy at will* from a tenancy at sufferance. They are (a.) a tenancy at sufferance is a common law concept and it is no longer known to and applicable in any tenancy relationship in Nigeria;³⁹ and (b.) the tenant in a tenancy at sufferance holds over just like a tenant in a tenancy at will, but he holds over without the consent of the landlord.⁴⁰

Again, a tenancy at sufferance can be differentiated from a statutory tenancy even though both of them have one major feature in common: holding over without the consent of the landlord. The Supreme Court succinctly captures the distinction between tenancy at sufferance and statutory tenancy in *AFRICAN PETROLEUM LIMITED V. OWODUNNI*⁴¹ as follows:

“...whereas a tenancy at sufferance is a concept of the common law in areas where there are no statutes designed to protect tenants who are holding over after their contractual tenancies have come to an end, the statute, where such exist, performs the same function in the case of a statutory tenant.”⁴²

IMPORTANCE OF COVENANTS IN A TENANCY AGREEMENT

³⁷ See *African Petroleum Limited V. Owodunni*, n 26.

³⁸ (2014) LPELR-23358(CA) Per NDUKWE-ANYANWU, J.C.A., pp. 10-11,, paras.G-C).

³⁹ See *African Petroleum Limited V. Owodunni*, n.26.

⁴⁰ See *Abeke V. Odunsi*, n.9

⁴¹ *Supra*

⁴² Per Nnaemeka-Agu, JSC, p.795 (paras A-B).

Covenants in every contractual relationship operate as terms and conditions of a contract that must be observed by parties to the contract in order to respect the sanctity of the contract. Covenants are usually enforceable upon breach by the party who suffered from the breach occasioned by the other party. It is the covenants in themselves that make up the contract.

Covenants represent the set of promises to do or not to do certain acts.⁴³ Where, therefore, parties to a tenancy agreement have covenanted to restrain from doing certain acts,⁴⁴ the doing of such act will amount to a breach of contract which is actionable against the party that breaches the covenant. In the same manner, the landlord and the tenant usually covenant to do certain acts, and failure to do same will result in the contract being breached by the erring party.⁴⁵ On the importance and bindingness of the terms and conditions of a contract, the Supreme Court held in *ISHENO V. JULIUS BERGER (NIGERIA) PLC*,⁴⁶ as follows:

“...it is settled law that parties to an agreement or contract are bound by the terms and conditions of the contract they signed, in this case, exhibit H, and cannot operate outside its terms and conditions.”⁴⁷

The sanctity of covenants in a contract is not only applicable to written agreement signed by the landlord and the tenant, but will also apply to contracts orally entered into by the parties,⁴⁸ especially when the terms are clearly spelt out. The Court of Appeal has emphasized that:

“It is in the public interest that the sanctity of tenancy agreements like all contracts be protected and the rule of law upheld at all time.”⁴⁹

Generally, covenants have been divided into two types, namely: *express covenants* and *implied covenants*. Express covenants are the ones that are unequivocally stated, agreed on and/or clearly spelt out by the parties to a tenancy relationship. On the other hand, implied covenants are ones, the existence of which the law presumes or implies and incorporates into the tenancy agreement between the parties. The presumption and incorporation of implied covenants into the tenancy agreement are only done where the parties fail to have express terms on the covenants implied.

⁴³ Black’s Law Dictionary, 9th Edition, p. 419.

⁴⁴ For example, the landlord is usually restrained from interfering with the quiet and exclusive possession of the tenant while the tenant is usually restrained from parting with the landlord’s reversion or denying the landlord’s title.

⁴⁵ A good example of this is where the landlord covenanted to pay the necessary charges payable in law by the owner of the demised premises and where the tenant also covenanted to insure the premises demised.

⁴⁶ (2008) All FWLR (PART 415) 1633 at 1653 (paras H-A).

⁴⁷ Per Akintan, JSC.

⁴⁸ See *Robinet Nigeria Limited V. Shell Nigeria Gas Limited* (2013) LPELR-22144(CA).

⁴⁹ *Amazeze V. Onwudiwe* (supra)

There are certain covenants that the law will not ordinarily imply where the parties fail to expressly agree on them. They include: the responsibility for insurance; alterations and improvements; service charge; option to renew where the tenancy is for a fixed term; right to sub-let or charge the tenancy; and option to purchase the reversion after the expiration or effluxion of the tenancy. The reason for this will ordinarily be that the court must not be found making a contract for the parties, as they are bound by what they agreed on, and the freedom and sanctity of a contract have to be respected.⁵⁰ However, the sanctity of a contract will not obviate the power of the court to imply covenants for quiet enjoyment, exclusive possession subject to right of reasonable inspection, right to privacy and condition for fitness for purpose in favour of the tenant on the one hand; and payment of rent, rates and taxes; obligation not to commit waste; and obligation to put the demised premises to a tenantable use in favour on the landlord on the other hand.

The aim of the division of covenants into express and implied would not appear to indicate that more importance will be attached to one type than the other. It is just to cure the mischief that may arise from the refusal to observe the implied terms on the basis that parties did not expressly agree on them. However, the court will readily enforce covenants that are expressly agreed on by the landlord and the tenant to regulate their contract. Two conceivable reasons for this are that (i) covenants embedded in a written tenancy agreement enable the parties and the court to have easy access to what the parties agreed or purportedly agreed on at the time of entering into the contract; and (ii) covenants clearly stated in a written tenancy agreement constitute the *consensus ad idem* that the parties wish should ordinarily regulate their relationship in addition to any regulation by a relevant statute.

Under the *Tenancy Law of Lagos 2011*, the above-mentioned express and implied covenants have now been recognized as rights and obligations of the landlord and the tenant respectively.⁵¹ This will appear to be novel and particular to the Lagos Law alone.⁵² The implication of this is that where a tenancy agreement does not contain express and/or implied covenants, the court will adopt the rights and obligations of the parties under the Law as their covenants under the agreement. They include:

For the tenant—

- a. Right to privacy;
- b. Right to freedom from unreasonable disturbance;
- c. Right to exclusive possession of the premises, subject to landlord's restricted right of inspection;
- d. Right to use of common areas for reasonable and lawful purposes;
- e. Obligation to pay rent as agreed;
- f. Obligation to pay all existing and future rates and charges not payable by the landlord by law;
- g. Obligation to keep the premises in good and tenantable repair;

⁵⁰*Robinet Nigeria Limited V. Shell Nigeria Gas Limited (supra)*.

⁵¹ See sections 6, 7, 8 and 9 of the law.

⁵² The provisions of other rent control and recovery of premises laws of Cross River, FCT Abuja, Delta and Edo States reviewed during the course of this paper do not expressly have provisions setting out the rights and obligations of the landlord and the tenant that operate just like the express and implied covenants.

- h. Obligation to allow the landlord to carry out inspection at all reasonable hours of the daytime;
- i. Obligation not to make alterations or additions to the premises without the written consent of the landlord;
- j. Obligation not to assign or sub-let any part of the premises without the written consent of the landlord; and
- k. Obligation to notify the landlord where structural or substantial damage has occurred.

For the landlord—

- a. Obligation not to disturb the tenant's quiet and peaceable enjoyment of the premises;
- b. Obligation to pay all rates and charges as stipulated by law;
- c. Obligations to keep the premises insured against loss or damage;
- d. Obligations not to terminate or restrict the use of common facility;
- e. Obligation not to seize any item or property of the tenant or interfere with tenant access to his personal property; and
- f. Obligation to effect repairs and maintain the external and common parts of the premises.

Because of their importance, the breach of any covenant (obligation) is actionable and will entitle the plaintiff to any or some of the remedies for breach against the Defendant. As regard the landlord, the remedies include premature termination of the tenancy, right to re-entry, award of damages and forfeiture of the tenancy where the tenant has contested or denied the landlord's title. With respect to the tenant, the remedies include specific performance, award of damages, premature termination of the tenancy and demand for unused rent among others.

DETERMINATION OF TENANCY

Determination of tenancy is a formal severance of the tenancy relationship by the landlord through the service of a quit notice on the tenant. Upon the expiration of the date in the quit notice, the tenancy determines formally. Where the tenant still holds over after the expiration, the landlord serves the second notice, usually referred to as the seven-day notice of landlord's intention to apply to court to recover premises.

To determine a tenancy, a quit notice can be served during the subsistence of the tenancy or after the anniversary of the tenancy. However, the principle governing determination of tenancy through service of a quit notice differs from one State to the other. While in some States, a quit notice served must expire on the eve of the anniversary of the tenancy before the notice can be valid in law,⁵³ in other States the notice served can expire simultaneously with tenancy or after the anniversary of the tenancy, and it will be valid.⁵⁴

⁵³ See sections 8 and 9 Recovery of Premises Act, LFN 1990.

⁵⁴ See section 13 Tenancy Law of Lagos State and section 15 Rent and Recovery of Premises Law of Cross River State.

The length of the notice is usually as agreed by the parties, and where there is no such agreement between the parties, the provisions of the rent control and recovery of premises law on length of notice will apply.⁵⁵

Usually, where there is no agreement between the landlord and the tenant as to the length of notice to be given by either parties, the following will apply:⁵⁶

- a. A week notice for a tenant at will;
- b. One month's notice for a monthly tenant;
- c. Three months' notice for a quarterly tenant;
- d. Three months' notice for a half-yearly tenant; and
- e. Six months' notice for a yearly tenant.

Service of a valid quit notice (and owner's intention to recover premises) is a prerequisite for exercise of jurisdiction by the court. Where a quit notice is not served on the tenant or the quit notice is defective for not being properly served or for falling short of the required time, the court becomes devoid of jurisdiction to entertain the suit for recovery of premises brought against the tenant. In *SPLINTERS NIGERIA LIMITED v. OASIS FINANCE LIMITED*,⁵⁷ the Court of Appeal held that:

"This is important because service of owner's intention to apply to recover possession and indeed the quit notice, where relevant, is a condition precedent to the exercise of jurisdiction by the Court and failure to issue such notices is fatal to the case. See Sule v. Nigerian Cotton Board (1985) 2 NWLR (Pt.5)17; Ayinke Stores Ltd v. Adebogun (supra); Ese Akpokiniovo v Air Liquide Nigeria PLC (2002) LPELR-9582 (CA)."

CONTESTING OWNERSHIP WITH THE LANDLORD

There are instances where, for one reason or the other, the tenant may turn around and deny or contest the ownership of the demised premises with the landlord. This happens where the tenant blatantly says that he owns the property or that the landlord does not have title to the premises demised to the tenant, by reason of the landlord's title being defective or non-existent in law. In a situation as this, the tenant may be said to be contesting the ownership of the demised premises with the landlord.

The position of the law and the approach of the courts in instances like this are that such tenant will not be treated as a tenant again, and he will lose the rights conferred on a tenant by the recovery of premises laws and the tenancy agreement between the parties, especially rights to be served a quit notice and the

⁵⁵ Ibid.

⁵⁶ Ibid.

⁵⁷ (2013) LPELR-20691(CA), Per Iyizoba, JCA, P.33, (paras. B-D).

landlord's intention to recover the demised premises upon expiration of the quit notice. In other words, the landlord will ordinarily have a right to commence an action for foreclosure of the tenancy without recourse to service of the statutory notices on the tenant, and the right to foreclose can be exercised by the landlord whether or not the "tenancy" still subsists or has expired.

This position was reiterated by the Supreme Court in *ABEKE V. ODUNSI*⁵⁸. In that case, the appellant (Abeke) purchased the property being occupied by the 1st and 2nd Respondents (Odunsi and Sky Hotel Limited) as tenants. The respondents later challenged the appellant's title on the ground that they ought to have been given first option to purchase the property. The appellant commenced an action for a declaration as the owner of the property and for entitlement to recover same upon service of the appropriate notices. The High Court gave judgment in his favour and declared him owner of the property. The appellant subsequently commenced an action to recover possession and mense profit.

At trial, the 1st Respondent (Odunsi) still claimed to be the owner of the property. He, however, admitted that he had no title documents. Based on the denial of the appellant's title, the High Court granted the appellant reliefs for possession and mense profit. The respondents were aggrieved with the decision and appealed to the Court of Appeal and the appeal was allowed. The appellant was also aggrieved and then appealed to the Supreme Court.

At the Supreme Court, the appellant raised three issues for determination. The first two issues are the ones relevant here for our purpose, and they are:

- a. *Whether the respondents denied the title of the appellant as the landlord of the property in question and thereby incurred the penalty of forfeiture of their tenancy; and*
- b. *Whether the respondents are entitled to be served statutory notices in spite of their denial of the appellant's title to the property.*

The Supreme Court on the first issue held, *inter alia*, that:

"As the court below had acknowledged the fact that as at the time the instant case was being fought at the trial High Court, the issue of who owns the property as between the appellant and the respondents had been put to rest and settled by the then Adeyinka, J's judgment, then there was nothing left of the previous owners of the said property upon which the respondent can be said to be relying. It is clear that the respondents were contesting and challenging the title of the appellant to the said property. On the effect of denial by a tenant of his landlord's title, it is instructive to note that the court below had agreed that a tenant that

⁵⁸ (2013) Supra.

denies that his landlord is the owner of the premises he lives in is liable to forfeit the tenancy.”⁵⁹

Regarding the second issue, the apex court has the following to say:

“There is no doubt that the respondent had denied being tenants to the appellant on property in question. Indeed, as earlier stated, they claim to be the owners. By this denial, the respondents robbed themselves of entitlement to statutory notices required to be served on a tenant. The court below was therefore, with the greatest respect, in error to have held that the respondent did not deny the title of the appellant as held by the trial court. Accordingly, issues 1 and 2 argued together are hereby resolved against the respondents but in favour of the appellant.”⁶⁰

In respect of a customary tenancy, which is also governed by the general law of landlord and tenant in Nigeria, misconduct is usually a ground for determining the tenancy by the overlord. As such, contesting the title of an overlord by a customary tenant or setting up a rival title is a case of serious misconduct that will entitle the overlord to a right of forfeiture of the customary tenancy.

The Court of Appeal in *DANSU V. LABALU*⁶¹, confirmed this position. In this case, the appellants contested title to the land with the respondents, and the respondents commenced an action for forfeiture of the appellant customary tenancy at the Customary Court. The respondents established at the Customary Court that the appellants were their customary tenants. The Customary Court forfeited the tenancy of the appellant. Not satisfied with the judgment, the appellants appealed to the High Court. Again, the appellants lost and the High Court affirmed the judgment of the Customary Court. The appellants were still aggrieved and further appealed to the Court of Appeal. The Court of Appeal relied on certain decisions of the Supreme Court, and held that:

*“It seems to be settled law that forfeiture is not an automatic remedy. See **Esi vs. Warri Divisional Planning Authority** (1973) 11 SC235 referred to in principles of Nigerian Customary Land Law by J. Fekumo at page 312. It would seem however that where the Respondents' title is denied, forfeiture becomes automatic. See **Onoitare v. Onopasa** (1984) 12 SC p.19 at p.50. In the case of **Oniah v. Onyia** (1989) 1 NWLR (Pt. 99) p.514 at p.532, the Supreme Court stated the position of the law this way: "It is well settled that forfeiture is the usual mode to determining a*

⁵⁹ Per Ariwoola, JSC, P.673 (paras C-E)

⁶⁰ Per Ariwoola, JSC, P.677 (paras A-B)

⁶¹(2014)LPELP- 22939(CA), Per DANIEL-KALIO, J.C.A. (p.24, paras. A-G)

customary tenancy. The real basis of the misconduct or misbehavior which renders the tenancy liable to forfeiture is the challenge to the title of the overlord. This maybe by alienation of part of the land under claim of ownership, refusal to pay the tribute due or indeed, direct denial of overlords' title by setting up a rival title in the customary tenant himself."

It is clear that the Appellants in this case set up a rival title. That is why the Respondents claims were contested. The order of forfeiture made by the trial customary court and affirmed by the lower court cannot be faulted."

The Supreme Court has since settled and rubber-stamped the consequence of the customary tenant denying the title of the overload in *TAIWO V. AKINKUNMI*⁶² where it held that:

"It is a gross act of misconduct for a customary tenant to deny the title of his overlord. Denial of an overlord's title by a customary tenant is one of the greatest breaches that a customary tenant can commit. A customary tenant who turns not only to dispute the ownership of the title holder but goes out of his way to claim title, forfeits his right as a tenant and his possession of the land."

ACTION FOR RECOVERY OF PREMISES

The respective rent control and recovery of premises laws in Nigeria frown at the landlord engaging in self-help or any other illegal means to recover premises from the tenant upon effluxion of term or expiration of the tenancy, as recovery of premises must only be through the court of law after the expiration of the statutory notice(s).⁶³ Acts such as forcible or illegal ejection of the tenant, harassment or molestation of the tenant with the view to ejecting him, threatening the tenant by action or words to achieve his ejection and willful damage to any part of the demised premises have all been criminalized.⁶⁴ With possible excesses of the landlord criminalized in this regard, recovery of premises is always done by action commenced by the landlord before the High Court, the Magistrate Court and/or the Rent Court/Tribunal⁶⁵, depending on what is obtainable in the various States in Nigeria.

⁶² (1975) 4 S.C. 143.

⁶³ See generally sections 16 and 44 of Tenancy Law of Lagos State 2011; sections 18, 20 and 43 of the Rent Control and Recovery of Premises Law of Cross River State.

⁶⁴ Ibid. See in particular section 44 of the Lagos Law and section 43 of the Cross River State Law.

⁶⁵ The Rent Tribunals no longer operate in Lagos. They have been abolished and their functions have been transferred to the Magistrate Courts under the Rent Tribunal (Abolition and Transfer of Function) Law 2007, same which has been repealed under section 48 of the Tenancy Law of Lagos State 2011. In the same vein, Rent Tribunals no longer operate in Cross River State. They were established pursuant to the Rent Control and Recovery of Premises Laws of Cross River State 1977 which has been repealed under section 56 of the instant law.

In Lagos, both the High Court and the Magistrate's Court can exercise jurisdiction on tenancy matters depending on the monetary claim involved. Section 2(4) of the **Tenancy Law of Lagos 2011** provides that *"proceedings shall be brought under this law at the High Court where the rental value of the premises exceeds the jurisdiction of the Magistrate Court as provided by the Magistrates' Courts Law"*. The relevant Magistrates' Courts Law in Lagos is the **Magistrates' Courts Law of Lagos 2009**. Under section 28 of the law, the Magistrate's Court cannot exercise jurisdiction in a tenancy matter where the rental value is more than N10,000,000.00 (Ten Million Naira), excluding the claim for arrears of rent and mesne profits. Where the primary claims exceed N10,000,000.00 (Ten Million Niara), the Magistrate's Court becomes wanting of jurisdiction and the High Court takes the centre stage.

In Cross River State, the courts with jurisdiction on tenancy matters are the Rent Control Courts.⁶⁶ These courts are integral parts of the State's magistracy and are presided over by Magistrates.⁶⁷ The practice and procedure in the Magistrates' Courts also apply to the Rent Control Court.⁶⁸ The Rent Control Courts will generally exercise jurisdiction where the rent claimed by the landlord is in excess of the rent prescribed by the law or where the landlord increases rents on the basis of adding amenities to demised premises.⁶⁹ The High Court in Cross River State cannot be a court of first instance under the Cross River State Law. Also, under the law, appeals from the Rent Control Courts lie and terminate at the High Court.⁷⁰ There is no further right of appeal to the Court of Appeal on the issue.⁷¹

While an action for recovery of premises is commenced in Lagos by way of Claim at the Magistrates' Court's level and by way of Writ of Summons⁷² at the High Court level, in Cross River State it is commenced by way of Complaint. Both the Writ of Summons and the Complaint must comply with the specimen forms, subject to modifications that may be necessary. However, the use of Claim in the Magistrates' Courts in Lagos State is new. It was introduced by the Magistrates' Court of Lagos (Civil Procedure) Rules 2010, and it operates like the Statement of Claim at the High Court level. It states averments that operate like pleadings in the Statement of Claim.⁷³

⁶⁶ Section 2 of the Cross River State Law

⁶⁷ Ibid. section 3

⁶⁸ Ibid. section 8(3).

⁶⁹ Ibid. See generally section 9.

⁷⁰ Ibid. Section 39

⁷¹ This provision may be subject to judicial review. It raises a fundamental question as to whether a right of (further) appeal to the appellate courts guaranteed by the Constitution can be taken away by this law. Sections 1(3), 4(5) and 241 of the 1999 Constitution (as amended) are particularly instructive. It is noteworthy that the language of these sections is the mandatory "shall".

⁷² See Order 3 Rule 2 of the High Court of Lagos State (Civil Procedure) Rules 2012

⁷³ In practice, some lawyers still stick to the old Complaint as a mode of commencing an action in the Magistrate's Court. This can be a ground for a Notice of Preliminary Objection, as a Complaint is no longer known to law in Lagos State. A court can *suo motu* question the commencement of an action by complaint in Lagos, since it is a question of law. Advantages of using the newly introduced Claim include: (i) it enables the landlord to fully aver the state of affairs between him and the tenant; (ii) it enables the tenant to fully know the case of the landlord against him (and file his defence accordingly); and (iii) it enables the court to dispense justice timeously having had the full facts of the case and the reliefs sought by the parties before him.

Proper determination of tenancy is a prerequisite to exercise of jurisdiction by the court in recovery of premises actions. Where there is evidence before the court that the tenancy is not properly determined, the court may decline jurisdiction.⁷⁴ In *SPLINTERS NIGERIA LIMITED v. OASIS FINANCE LIMITED*,⁷⁵ the Court of Appeal held that:

“In Ikom Local Government v Chenlex Group Ltd (2077) LPELR - (CA) it was held that if service of process is necessary or required and there is no concrete or irrefutable proof that such service has been effected on the adverse party, any decision or judgment emanating from such a proceeding is a nullity.”⁷⁶

Usually, the reliefs sought by the Plaintiff landlord on the face of his Writ of Summons, Claim or Plaint as the case may be, are:

a. Recovery of possession of the premises—

An order for (re)possession of the premises will normally be made in favour of the landlord where there's evidence of service of the due statutory notice(s) on the tenant and the court at trial finds in favour of the landlord based on the application of the relevant law to the facts before the court. Where this is the case, the reversionary interest of the landlord becomes ripe and enforceable from the moment an order in respect of same is made by the court. It is possible, however, that the tenant may during the pendency of the suit reach an understanding with the landlord that possession will be yielded up at a date convenient to the tenant. If this is agreeable to the landlord and terms of settlement are eventually drawn by the parties on this basis for adoption of the court as judgment, then the reversionary interest of the landlord becomes ripe and enforceable on the date agreed in the terms of settlement.

b. Arrears of rent—

In a simple parlance, arrears of rent are monetary consideration or rents that remained unpaid by the tenant during the subsistence of the tenancy. The arrears represent *‘the total rent payable in respect of a property which a tenant occupies’*,⁷⁷ but which has not been paid as at the date of determination or expiration of the tenancy. Relying on the Supreme Court decision in *OSAWARU V. EZEIRUKA (1978) 5-7 S.C (REPRINT) 91*, the Court of Appeal in *OLOJEDE V. OLALEYE*⁷⁸ quoted Aniagolu, JSC (retired) as follows:

“In arrears of rent claim the tenant is deemed to be lawfully and validly in possession, but is owing rent. In such a claim for arrears of rent the landlord is not challenging the continued occupation of the premises by

⁷⁴ *SPLINTERS NIGERIA LIMITED v. OASIS FINANCE LIMITED* (supra) , Per Iyizoba, JCA, P.33, (paras. B-D).

⁷⁴. *ibid*

⁷⁶ Page 36, paras D-E

⁷⁷ *Olojede V.Olaleye* (2012)LPELR-9845(CA), Per DENTON-WEST, J.C.A (p 37,Paras F).

⁷⁸ *Ibid*.

the tenant, indeed, he concedes that the tenant is validly and legally in possession."

In other words, arrears of rent can only be claimed where the rents owed by the tenant to the landlord were owed during the subsistence of the contractual tenancy. The moment the tenancy is determined, the landlord cannot, from that date of determination claim arrears of rent again. Therefore, determination of tenancy can be said to be the dividing line between the kinds of monetary compensation owed to the landlord during the tenancy and after the expiration of the tenancy.

c. Mesne profit —

Mesne profit is another kind of monetary compensation paid by the tenant to the landlord for the occupation of the premises. It is that monetary compensation that is usually assessed by the court to be payable to the landlord from the moment the tenancy is determined and the tenant holds over, up to the moment the tenant delivers up possession. Making a distinction between when arrears of rent and mesne profit are payable by the tenant to the landlord, the Supreme Court in *OSAWARU V. EZEIRUKA*⁷⁹ explained thus:

"But in a claim for mesne profits the landlord by implication is challenging the continued occupation of the premises by the tenant whom he now regards as a trespasser, and is therefore claiming damages which he has suffered through being out of possession of the premises. Mesne profits being, therefore, damages for trespass can be claimed from the date when the defendant ceased to hold the premises as a tenant and became a trespasser.⁸⁰ See Butterworth's words and Phrases Legally Defined, 2nd Edition P: 251) The word 'Mesne' was derived from the Latin word "Medius" meaning middle, intervening or intermediate (See Earl Jowitt's: The Dictionary of English Law, 1959 Edition P. 11670). And so a landlord in claiming for "mesne profits" is claiming for the profits intermediate from the date the tenant ought to have been given up possession and the date he actually gives up possession. It is therefore damages for trespass the measure of which is the amount the tenants had been paying as rent for the corresponding period when he was lawfully in occupation as a tenant."

Similarly, in *AFRICAN PETROLUUM LIMITED V. OWODUNNI*,⁸¹ the appellant claimed, among other reliefs, mesne profits, from the respondent who had been adjudged to be a statutory tenancy but who was not given a valid quit notice. On the basis that he was not given a valid quit notice, the Supreme Court held,

⁷⁹ (1978) 5-7 S.C (REPRINT) 91

⁸⁰ The date of the expiration of the notice.

⁸¹ Supra

inter alia, that since he was not given adequate and appropriate quit notice, being six months, a claim for *mesne profit* could not be maintainable against him. Because of the defective notice, the tenant was construed to still be a tenant for the purpose of liability or otherwise to pay *mesne profit*. In the words of the apex court:

*"It follows therefore that a claim for mesne profit is inappropriate when the occupier is still a tenant. It can only be maintained when his tenancy has been duly determined and he becomes a trespasser. In this respect, a statutory tenant such as the defendant, though merely a protected tenant, cannot be properly adjudged to be liable for mesne profit unless and until his tenancy has been duly determined according to law."*⁸²

In a more recent case, *ABEKE V. ODUNS*⁸³, the Supreme Court, has re-emphasized that:

"Generally, a claim for mesne profits is based on trespass by the defendant in occupation and it is inappropriate in respect of lawful occupation as a tenant. It can only be maintained when the tenancy has been duly determined and the tenant becomes a trespasser. Therefore in any situation where a tenancy is created by operation of law, the status of trespasser will not arise until the tenancy has become duly determined according to law. See; Omotosho vs Oloriegbe (1988) 4 NWLR (Pt.87) 225, Ayinde vs Lawal (supra)."

From the generality of these decisions, it can be deduced that for there to be an award for *mesne profits*, the following events must have taken precedence:

- a. Service of due notice to quit on the tenant;
- b. Expiration of the notice;
- c. Holding over of the premises by the tenant after expiration (statutory tenancy) in which case the tenant becomes a trespasser⁸⁴;
- d. Claiming for *mesne profit* from the commencement of the holding over up till possession is given.

e. Damages for use and occupation—

Again, award of damages for use and occupation is another way to compensate the landlord for the use of his property by a supposed tenant. Damages for use and occupation are paid to the landlord when what is payable by the occupant or the tenant cannot, in law, be adjudged to be rents or *mesne*

⁸² Per Nnaemeka-Agu, JSC(retired), p. 800 (paras. A-B)

⁸³ Supra. Per ARIWOOLA, J.S.C. (Pp. 29-30, paras. E-A)

⁸⁴ A statutory tenant only becomes a trespasser upon expiration of the quit notice.

profits. The explanation of the Supreme Court of this term is captured in *AFRICAN PETROLEUM V. OWODUNNI*⁸⁵ in the following clear terms:

“On the other hand, where a tenant who entered upon a premises lawfully occupies the land or premises of another without an agreement with or consent by the true owner, what he has to pay is not rent, because as there is no longer demise, he no longer has an estate⁸⁶, he will not pay mesne profit because he is not a trespasser. Rather, he will be liable for damages for his use and occupation of the land or premises.”

One period of time, that one can easily think of, when an occupant or a “tenant” may be liable for damages for use and occupation is a period of statutory tenancy when the tenant has not yet been served a quit notice. For this period, a tenant cannot be liable for arrears of rent because the contractual tenancy period between him and the landlord has ended. Also, the tenant cannot be liable for mesne profit during this period because his statutory tenancy has not been determined. In a nutshell, it is possible to bring an action for recovery of premises with the landlord seeking together with recovery of premises all the three monetary reliefs of *arrears, mesne profits and damages for use and occupation*.

CONCLUSION

The law of landlord and tenant in Nigeria cannot be better understood without due recourse to judicial decisions. Rent control and recovery of premises laws across the States in Nigeria will appear to have made copious provisions governing and regulating the relationship between the landlord and the tenant in Nigeria. However, the courts through judicial decisions have taken the centre stage in not only interpreting the provisions of the tenancy laws, but have also given elaborate interpretations of the provisions of the laws to enhance the understanding of the principles and jurisprudence of landlord and tenant in Nigeria.

As earlier indicated, the concept of statutory tenancy in Nigeria is not unequivocally provided for in respective tenancy laws. It is through judicial decisions, especially of the Supreme Court, that the concept clearly finds its way into our jurisprudence. In the same vein, a convincing distinction between terms such as arrears of rent, *mesne profit* and damages for use and occupation is also a product of judicial decisions. The role played by the courts in enhancing and elaborating the tenancy laws in Nigeria cannot be overemphasized. Apart from the fact that our law may remain stagnant as they are in the law books, one can only imagine the mischief that would have resulted in such good number of cases, if the courts have not taken steps to flesh up the provisions of our tenancy laws in areas where there are obvious legislative gaps. Some States are already taking the hint of the courts and reflecting it in their amended or repealed rent control and recovery of premises laws.

⁸⁵(Supra). Per Nnaemeka-Agu, JSC(retired), p. 800 (para C). See also *ABEKE V. ODUNSI* (Supra).

⁸⁶ This is an indication that rent is only paid when there is an estate in favour of the tenant. The only time the tenant has an estate is during the contractual tenancy, and this is the only time rents or arrears of rent can be claimed. The tenant does not have an estate during the statutory tenancy.